

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MOISHE BRADLEY and VOASIA MARSHALL,

Plaintiff,

- against -

THE CITY OF NEW YORK,
P.O. JUSTIN SENESE and JOHN
DOES "1-3", The names being
fictitious and identity unknown,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiffs resides at:

MOISHE BRADLEY
233 W. 111th St. (#3D)
New York, NY 10026

County of New York

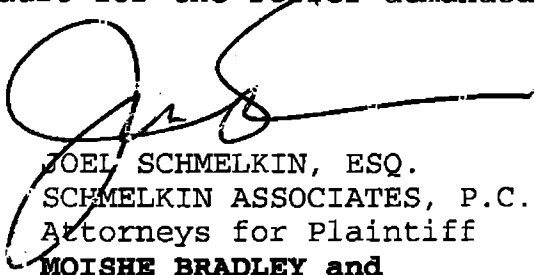
VOASIA MARSHALL
1465 Park Avenue (#916)
New York, NY 10029

To the above named defendant(s):

County of New York

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 24, 2022


JOEL SCHMELKIN, ESQ.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
MOISHE BRADLEY and
VOASIA MARSHALL
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007
P.O. JUSTIN SENESE, c/o 25th Precinct, 120 E 119th St, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MOISHE BRADLEY and VOASIA MARSHALL,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. JUSTIN SENESE and "JOHN
DOES "1-3", the names being,
fictitious and identity unknown,

Defendants.

-----X

Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

**PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF MOISHE BRADLEY**

1. That, at all times hereinafter mentioned, and on
May 6, 2021, the plaintiff, **MOISHE BRADLEY**, was and still is a
resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on
May 6, 2021, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
May 6, 2021, the defendant, **P.O. JUSTIN SENESE**, (hereinafter
referred to as "**SENESE**"), was and still is a resident of the City
and State of New York.

4. That, at all times hereinafter mentioned, and on May 6, 2021, the defendant, **"JOHN DOES 1-3", the names being fictitious and identity unknown**, (hereinafter referred to as **"DOES"**), were and still are a resident of the City and State of New York.

5. That, the plaintiff, **MOISHE BRADLEY**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on July 22, 2021, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **MOISHE BRADLEY**, testified at an oral examination pursuant to the General Municipal Law on December 10, 2021; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That, at all times hereinafter mentioned, and on May 6, 2021, plaintiff **MOISHE BRADLEY** was present on East 120th Street, and Lexington Avenue, in the County of New York, City and State of New York.

7. That, the plaintiff **MOSHE BRADLEY**, was the driver of a motor vehicle, at the above location at approximately 7:00A.M.

8. That, the aforementioned motor vehicle was owned by the co-plaintiff, **VOASIA MARSHALL**.

9. That, the plaintiff, **MOSHE BRADLEY** was driving the aforementioned motor vehicle which was owned by the co-plaintiff, **VOASIA MARSHALL**, with her knowledge and consent.

10. That, the plaintiff, **MOSHE BRADLEY**, had previously left the New York State Department of Motor Vehicles office and was driving to his residence.

11. That, the plaintiff, **MOSHE BRADLEY**, was driving the aforementioned motor vehicle which was owned by the co-plaintiff, **VOASIA MARSHALL**, who was a passenger therein.

12. That, the plaintiff, **MOSHE BRADLEY**, had obeyed all traffic laws when operating said vehicle en route to his residence.

13. That, the plaintiff **MOSHE BRADLEY** was order to produce insurance information and New York State Department of motor vehicles documentation, by the defendants, their agents, servants and/or employees.

14. That, without probable cause, without reason or cause and without justification, the plaintiff, **MOSHE BRADLEY** was handcuffed and searched, without his consent.

15. That, the aforementioned motor vehicle was searched, by the aforementioned police officers, agents, servants, and employees of the defendant, **THE CITY**, without reasonable cause, without probable cause and without justification.

16. That, the plaintiff, **MOSHE BRADLEY**, was taken by the aforementioned police officers, agents, service, and the employees of the defendant, **THE CITY**, to the 25th Precinct, against his will and at all times was cognizant of that fact.

17. That, the plaintiff, **MOSHE BRADLEY**, was placed in a cell at the aforementioned police precinct, for a long and unreasonable period of time, whereby he was handcuffed, photographed and given a desk appearance ticket.

18. That, all charges against the plaintiff, **MOSHE BRADLEY** were adjourned in contemplation of dismissal.

19. That as a result of the foregoing, the plaintiff **MOISHE BRADLEY** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MOISHE BRADLEY
(Assault and Battery)

20. That, the plaintiff, **MOISHE BRADLEY**, repeats, reiterates, and realleges, each and every allegation as set forth

in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on May 6, 2021, the plaintiff, **MOISHE BRADLEY** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **MOISHE BRADLEY**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place at East 120th Street and Lexington Avenue, County of New York, City and State of New York and other locations wherein the plaintiff, **MOISHE BRADLEY** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on May 6, 2021, and for sometime prior thereto, defendant, **SENESE**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on May 6, 2021, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their

employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

26. That, the aforementioned assault and battery of the plaintiff, **MOISHE BRADLEY**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

27. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MOISHE BRADLEY

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

30. That, the plaintiff, **MOISHE BRADLEY** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 29 with the same force and effect as if hereinafter more fully set forth at length herein.

31. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SENESE**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the

defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SENESE**, who was employed by the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

37. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

38. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

39. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MOISHE BRADLEY
(False Arrest and
False Imprisonment)

40. That the plaintiff, **MOISHE BRADLEY** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 39 with the same force and effect as if hereinafter more fully set forth at length herein.

41. That, on May 6, 2021, the plaintiff, **MOISHE BRADLEY**, was caused to be falsely arrested and falsely imprisoned without probable cause.

42. That, the plaintiff, **MOISHE BRADLEY**, was arrested without an arrest warrant.

43. That, the false arrest/false imprisonment took place at East 120th Street and Lexington Avenue, in the County of New York, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **MOISHE BRADLEY** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

44. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MOISHE BRADLEY**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MOISHE BRADLEY**, was carried out by defendant, **SENESE**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MOISHE BRADLEY**, was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

47. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment; was

unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

48. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

49. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MOISHE BRADLEY
(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

50. The plaintiff, **MOISHE BRADLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 49, with the same force and effect as if hereinafter more fully set forth at length herein.

51. That the plaintiff, **MOISHE BRADLEY** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and

battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

52. That at all times hereinafter mentioned, the defendant, **SENESE** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

53. That at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

54. Defendant, **SENESE**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **SENESE** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps

or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

55. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

56 The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **MOISHE BRADLEY** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **MOISHE BRADLEY** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States;

the right of plaintiff, **MOISHE BRADLEY**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **MOISHE BRADLEY**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

57. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

58. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY'S** custom and/or policy of arresting individuals without probable cause.

59. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY'S** custom and/or policy of arresting minorities without probable cause.

60. That the deprivation of plaintiff, **MOISHE BRADLEY'S** Constitutional Rights was the result of the defendant, **THE CITY'S** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

61. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

62. That, the detaining of plaintiff, **MOISHE BRADLEY** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

63. That, the deprivation of plaintiff, **MOISHE BRADLEY's** Constitutional rights was the result of the defendant, **SENESE's** arrest of the plaintiff **MOISHE BRADLEY** without probable cause.

64. That, the deprivation of plaintiff, **MOISHE BRADLEY's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **MOISHE BRADLEY** without probable cause.

65. That, the deprivation of plaintiff **MOISHE BRADLEY's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

66. That, the deprivation of plaintiff, **MOISHE BRADLEY's** Constitutional rights was the result of the defendant, **SENESE's** use of excessive force.

67. That, the deprivation of plaintiff, **MOISHE BRADLEY's** Constitutional rights was the result of the defendant,

DOES use of excessive force.

68. That, the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **MOISHE BRADLEY**.

69. That, by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **MOISHE BRADLEY** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

70. That, by reason of the foregoing, the plaintiff **MOISHE BRADLEY** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

71. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the

defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

72. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MOISHE BRADLEY
(Negligent Infliction
of Emotional Distress)

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **MOISHE BRADLEY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

75. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and

violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

78. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

79. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

80. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

81. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, has sustained damages in an amount in excess of

the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MOISHE BRADLEY
(Intentional Infliction
of Emotional Distress)

82. That the plaintiff, **MOISHE BRADLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 81 with the same force and effect as if hereinafter more fully set forth at length herein.

83. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **MOISHE BRADLEY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

84. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

87. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

88. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

89. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

90. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MOISHE BRADLEY
(Failure to Intervene)

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through

90 with the same force and effect as if more fully set forth at length herein.

92. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

95. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

97. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, was injured; was rendered sick, sore, lame and

disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

99. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

100. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

101. That, by reason of the foregoing, the plaintiff, **MOISHE BRADLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF VOASIA MARSHALL**

102. That, the plaintiff, **VOASIA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 101 with the same force and effect as if hereinafter more fully set forth at length herein.

103. That, at all times hereinafter mentioned, and on May 6, 2021, the co-plaintiff, **VOASIA MARSHALL**, was and still is a resident of the County of New York, City and State of New York.

104. That, at all times hereinafter mentioned, and on May 6, 2021, the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

105. That, at all times hereinafter mentioned, and on May 6, 2021, the defendant, **P.O. JUSTIN SENESE**, (hereinafter referred to as "**SENESE**"), was and still is a resident of the City and State of New York.

106. That, at all times hereinafter mentioned, and on May 6, 2021, the defendant, "**JOHN DOES 1-3**", the names being **fictitious and identity unknown**, (hereinafter referred to as "**DOES**"), were and still are a resident of the City and State of New York.

107. That, the plaintiff, **VOASIA MARSHALL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on July 22, 2021, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the co-plaintiff, **VOASIA MARSHALL**, testified at an oral examination pursuant to the General Municipal Law on December 10, 2021; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the

date that the within cause of action having been caused to accrue.

108. That at all times hereinafter mentioned, and on May 6, 2021, co-plaintiff **VOASIA MARSHALL** was present on East 120th Street, and Lexington Avenue, in the County of New York, City and State of New York.

109. That, the co-plaintiff **VOASIA MARSHALL**, was in a motor vehicle, as a passenger at the above location at approximately 7:00A.M.

110. That, the aforementioned motor vehicle was owned by the co-plaintiff, **VOASIA MARSHALL**.

111. That, the plaintiff, **MOSHE BRADLEY** was driving the aforementioned motor vehicle which was owned by the co-plaintiff, **VOASIA MARSHALL**, with her knowledge and consent.

112. That, the plaintiff, **MOSHE BRADLEY**, had previously left the New York State Department of Motor Vehicles office and was driving to his residence.

113. That, the plaintiff, **MOSHE BRADLEY**, was driving the aforementioned motor vehicle which was owned by the co-plaintiff, **VAOSIA MARSHALL**, with her knowledge and consent.

114. That, the co-plaintiff, **VOASIA MARSHALL**, had previously left the New York State Department of Motor vehicles office and was driving to her residence.

115. That, the plaintiff **MOSHE BRADLEY**, was ordered to produce insurance information and New York State Department of motor vehicles documentation, by the defendants, agents, servants and/or employees while the co-plaintiff, **VOASIA MARSHALL**, was present.

116. That, without probable cause, without reason or cause and without justification, the plaintiff, **VOASIA MARSHALL**, was handcuffed and searched, without her consent.

117. That, the aforementioned motor vehicle was searched, by the aforementioned police officers, agents, servants, and employees of the defendant, **THE CITY**, without reasonable cause, without probable cause and without justification.

118. That, the co-plaintiff, **VOASIA MARSHALL**, was taken by the aforementioned police officers, agents, service, and the employees of the defendant, **THE CITY**, to the 25th Precinct, against her will and at all times was cognizant of that fact.

119. That, the co-plaintiff, **VOASIA MARSHALL**, was placed in a cell at the aforementioned police precinct, for a long and original period of time, whereby she was handcuffed, photographed and given a desk appearance ticket.

120. That, all charges against the co-plaintiff, **VOASIA MARSHALL** were adjourned in contemplation of dismissal.

121. That as a result of the foregoing, the Co-plaintiff **VOASIA MARSHALL** was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief her injuries are permanent in nature and effect.

AS AND FOR AN SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL
(Failure to Intervene)

122. The Co-plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

124. Defendants failed to intervene to prevent the unlawful conduct described herein.

125. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, She was put in fear of her safety, and she was humiliated and subject to other physical constraints.

126. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

128. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

129. That, by reason of the foregoing, the co-plaintiff, **VOASIA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

130. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

131. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

132. That, by reason of the foregoing, the Co-plaintiff, **VOASIA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL
(Assault and Battery)

133 That, the plaintiff, **VOASIA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 132 with the same force and effect as if hereinafter more fully set forth at length herein.

134. That, on May 6, 2021, the plaintiff, **VOASIA MARSHALL** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

135. That, the plaintiff, **VOASIA MARSHALL**, was assaulted/battered without justification and without cause and without excuse.

136. That, the assault/battery took place at East 120th Street and Lexington Avenue, County of New York, City and State of New York and other locations wherein the plaintiff, **VOASIA MARSHALL** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

137. That, at all times hereinafter mentioned and on May 6, 2021, and for sometime prior thereto, defendant, **SENESE**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

138. That, at all times hereinafter mentioned and on May 6, 2021, and for sometime prior thereto, defendant, **DOES**, were

New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

139. That, the aforementioned assault and battery of the plaintiff, **VOASIA MARSHALL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

140. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

141. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

142. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

143. That, the plaintiff, **VOASIA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 142 with the same force and effect as if hereinafter more fully set forth at length herein.

144. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

145. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

146. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SENESE**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

147. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

148. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SENESE**, who was employed by the defendant, **THE CITY**.

149. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

150. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon

information and belief, her injuries are permanent in nature and effect.

151. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

152. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL
(False Arrest and
False Imprisonment)

153. That the plaintiff, **VOASIA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 152 with the same force and effect as if hereinafter more fully set forth at length herein.

154. That, on May 6, 2021, the plaintiff, **VOASIA MARSHALL**, was caused to be falsely arrested and falsely imprisoned without probable cause.

155. That, the plaintiff, **VOASIA MARSHALL**, was arrested without an arrest warrant.

156. That, the false arrest/false imprisonment took place at East 120th Street and Lexington Avenue, in the County of New York, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **VOASIA MARSHALL** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

157 That, the aforementioned false arrest and false imprisonment of the plaintiff, **VOASIA MARSHALL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

158. That, the aforementioned false arrest and false imprisonment of the plaintiff, **VOASIA MARSHALL**, was carried out by defendant, **SENESE**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

159. That, the aforementioned false arrest and false imprisonment of the plaintiff, **VOASIA MARSHALL**, was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

160. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was

unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

161. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendants and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

162. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL
(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

163. The plaintiff, **VOASIA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 162, with the same force and effect as if hereinafter more fully set forth at length herein.

164. That, the plaintiff, **VOASIA MARSHALL** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time she was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; maliciously

prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

165. That, at all times hereinafter mentioned, the defendant, **SENESE** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

166. That, at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

167. Defendant, **SENESE**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **SENESE** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make

redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

168. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

169. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **VOASIA MARSHALL** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **VOASIA MARSHALL** to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **VOASIA MARSHALL**, to be informed of the nature and cause of the accusation against her as secured to her

under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **VOASIA MARSHALL**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

170. That, the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

171. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY'S** custom and/or policy of arresting individuals without probable cause.

172. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY'S** custom and/or policy of arresting minorities without probable cause.

173. That, the deprivation of plaintiff, **VOASIA MARSHALL'S** Constitutional Rights was the result of the defendant, **THE CITY'S** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

174. That, the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

175. That, the detaining of plaintiff, **VOASIA MARSHALL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

176. That, the deprivation of plaintiff, **VOASIA MARSHALL's** Constitutional rights was the result of the defendant, **SENESE's** arrest of the plaintiff **VOASIA MARSHALL** without probable cause.

177. That, the deprivation of plaintiff, **VOASIA MARSHALL's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **VOASIA MARSHALL** without probable cause.

178. That, the deprivation of plaintiff **VOASIA MARSHALL's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

179. That, the deprivation of plaintiff, **VOASIA MARSHALL's** Constitutional rights was the result of the defendant, **SENESE's** use of excessive force.

180. That, the deprivation of plaintiff, **VOASIA MARSHALL's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

181. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **VOASIA MARSHALL**.

182. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **VOASIA MARSHALL** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

183. That, by reason of the foregoing, the plaintiff **VOASIA MARSHALL** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

184. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the

defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

185. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL
(Negligent Infliction
of Emotional Distress)

186. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 185 with the same force and effect as if more fully set forth at length herein.

187. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **VOASIA MARSHALL**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

188. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

189. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

190. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

191. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

192. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

193. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

194. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL

(Intentional Infliction
of Emotional Distress)

195. That the plaintiff, **VOASIA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 194 with the same force and effect as if hereinafter more fully set forth at length herein.

196. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **VOASIA MARSHALL**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

197. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

198. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

199. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

200. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

201. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

202. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

203. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN FOURTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VOASIA MARSHALL
(Failure to Intervene)

204. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 203 with the same force and effect as if more fully set forth at length herein.

205. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

206. Defendants failed to intervene to prevent the unlawful conduct described herein.

207. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

208. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

209. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

210. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

211. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

212. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

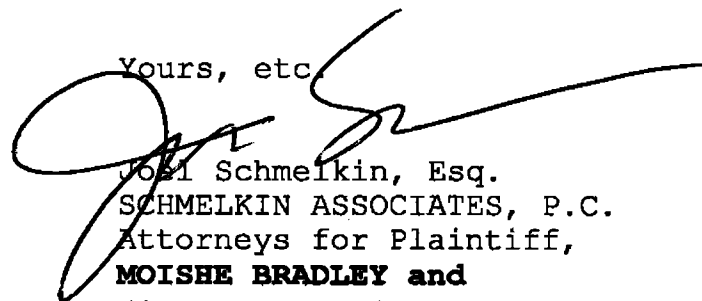
213. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

214. That, by reason of the foregoing, the plaintiff, **VOASIA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **MOISHE BRADLEY**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth, and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York as well as the costs, disbursement and legal fees pursuant to 42 U.S.C. Section 1988 of these causes of action; and plaintiff, **VOASIA MARSHALL** demands judgment against the defendants, on the Eighth, Ninth, Tenth, Eleventh, Twelfth, Thirteenth, and Fourteenth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
July 21, 2022

Yours, etc.



Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,

MOISHE BRADLEY and

VOASIA MARSHALL

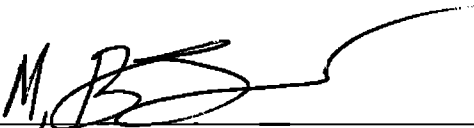
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

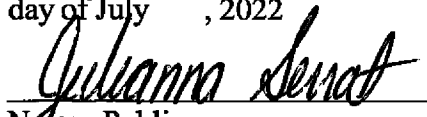
MOISHE BRADLEY, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing **COMPLAINT** and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



MOISHE BRADLEY

Sworn to before me this 21st
day of July, 2022



Notary Public

**Julianne Serrat
Commissioner of Deeds
City of New York No. 3-10216
Certificate Filed in Bronx County
Commission Expires January 01, 2024**

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

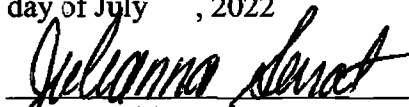
VOASIA MARSHALL, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing **COMPLAINT** and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



VOASIA MARSHALL

Sworn to before me this 21st
day of July, 2022



Notary Public

Julianna Serrat
Commissioner of Deeds
City of New York No. 8-10218
Certificate Filed in Bronx County
Commission Expires: January 01, 2024

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MOISHE BRADLEY and VOASIA MARSHALL,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. JUSTIN SENESE and JOHN DOES "1-3", the names, the names being
fictitious and identify unknown,

Defendants.

SUMMONS AND COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s) MOISHE BRADLEY and VOASIA MARSHALL

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: July 21, 2022

Signature

Print Signer's Name: Joel Schmelkin

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR